

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Movant's summary-judgment reply.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Reply Supporting Partial Summary Judgment

Filed December 5, 2025 — District ECF No. 52

Defendant Copper Kestrel Logistics, LLC replies in support of its motion for partial summary judgment on Count I. Asterglen's opposition confirms the facts that matter under Section 9.2. Asterglen declared termination and demanded \$480,000 on July 22, 2024. Before doing so, it did not deliver a written breach notice that described a cure to be completed within fifteen calendar days. The July 18 audit was internal. The July 22 communication allowed zero days. Those admissions resolve the motion without deciding whether expanded activity was authorized.

Asterglen responds with contested evidence concerning performance, but Copper Kestrel has assumed for this motion that Asterglen can prove use outside written authorization. Even on that assumption, Section 9.2 says the notice and opportunity come before termination or breach damages. Asterglen identifies no contractual text that permits it to reverse that order. Its theories of actual knowledge, substantial satisfaction, and futility cannot replace the promised written process where the evidence demonstrates that an orderly reduction was available. Judgment should be entered on Count I alone.

The controlling sequence is undisputed

The April 15 Pilot License listed twelve terminals. Section 9.2 requires written notice describing a material breach and a fifteen-calendar-day opportunity to cure before either party terminates for that breach or seeks breach damages. Asterglen's June 10 load-test conditions addressed the proposed twenty-nine additions, but they did not identify a later material breach, start a fifteen-day period, state an expiration date, or warn that termination and damages would follow if a specified cure was not completed.

The same is true of the July 18 audit. Asterglen concedes the audit remained internal. It was not served as contractual notice and gave Copper Kestrel no cure deadline. The first writing on which Asterglen relies for an asserted breach remedy is the July 22 communication. That writing disabled access, announced immediate termination, and demanded \$480,000 at once. It did not direct Copper Kestrel to reduce the configuration by a future date, and it did not promise withdrawal of the remedies after successful correction.

Actual awareness of a disagreement is not the procedure the parties selected. A cure clause allows the recipient to know the precise default being asserted, choose corrective steps, and preserve the agreement by completing them on time. General discussions about an unsigned proposal or testing limits serve a different function. Because no reasonable factfinder could find that Asterglen supplied the written notice and fifteen-day opportunity before invoking its remedies, the condition was not performed.

The July 8 dispute is not material to this motion

Copper Kestrel does not ask the Court to decide what permission Asterglen gave during the July 8 conference. The operations witness recalls authority to continue current activity while paperwork was completed, subject to monitoring and no further additions. Asterglen's witness recalls permission only for the controlled test under the June 10 conditions. Meridian's engineer understood the direction as continuation of the current test, not as a permanent amendment. The wording and scope remain disputed.

That conflict would matter if Copper Kestrel sought judgment that no underlying breach occurred. It does not seek such a ruling. For present purposes, the Court may assume Asterglen's account, assume activity exceeded the permitted test, and assume that the excess constituted a material breach. Section 9.2 would still require Asterglen to provide the promised written description and cure interval before terminating or seeking breach damages. Neither oral recollection supplies that later written sequence.

Asterglen suggests the conference showed that Copper Kestrel knew what corrective action Asterglen expected. Its own evidence defeats that suggestion. If reasonable participants understood “continue current test” differently, the recipient did not have the clear notice a cure clause is designed to provide. The disagreement made a formal writing more useful, not less. A notice identifying the disputed activity and directing reduction to twelve terminals could have removed the ambiguity. Asterglen chose immediate remedies instead.

No evidentiary basis supports excuse or futility

Asterglen identifies no express exception in Section 9.2. It nevertheless argues that a formal opportunity may have been ineffectual because Copper Kestrel supposedly rejected the license boundary. The evidence contains no refusal to comply with a notice that was never given. Copper Kestrel proposed commercial terms, participated in discussions, disputed the scope of temporary permission, and objected when Asterglen acted immediately. None of those facts establishes that Copper Kestrel would have rejected a clear direction coupled with the agreed cure period.

The cure-feasibility declaration supplies affirmative evidence to the contrary. In a controlled exercise, the configuration was reduced from forty-one identifiers to the twelve licensed terminals within three business days. The work included freezing additions, mapping sessions, separating shared routing references, disabling twenty-nine identifiers, and validating the twelve that remained. Completed shipment information was preserved, and a cached-route warning was corrected without preventing timely completion. Asterglen admits that the exercise demonstrates technical feasibility under its stated conditions.

Differences between preserved and live traffic affect the details of execution, not the absence of any cure opportunity. Section 9.2 allowed fifteen calendar days, substantially longer than the three-business-day exercise. Asterglen could have specified additional corrective measures in its notice and assessed the response before invoking remedies. Its assertion that Copper Kestrel might not have cooperated is speculation. A party cannot omit a promised process and then rely on uncertainty created by that omission to declare the process useless.

The contract consequence reaches all of Count I

Count I is pleaded as a claim for breach damages against Copper Kestrel and requests \$480,000. Section 9.2 expressly places the cure sequence before termination or breach damages. Asterglen does not identify a separate contract remedy in Count I that arose independently of the alleged terminal expansion or escaped the provision. Its request that the Court preserve an unidentified fragment of contract relief cannot overcome the complaint's theory and the agreement's language.

The damages disputes do not bar judgment on the prerequisite. Courts may decide that a claim fails before reaching competing calculations. Asterglen's asserted contract value and response costs remain demands for breach damages, regardless of how they are itemized. Because the required notice and opportunity were not provided, a trial over their amount would not change the result. Dismissal with prejudice of Count I is therefore appropriate.

Copper Kestrel's \$120,000 counterclaim is different. It seeks recovery for losses allegedly caused by Asterglen's immediate service disablement, including emergency dispatch labor, temporary routing services, customer credits, and technical restoration and validation. Asterglen disputes those elements, and Copper Kestrel has not moved for judgment on the counterclaim here. The Court can dismiss Asterglen's contract count while leaving liability, amount, and any future offset associated with the counterclaim for later determination.

The remaining claims do not prevent a count-specific ruling

Meridian correctly observes that Count II and the counterclaim share witnesses and events with Count I. Count II seeks \$360,000 for alleged interference by Meridian, and it will require consideration of Meridian's knowledge, intent, authority, and conduct. The counterclaim concerns the consequences of the July 22 disablement. Shared evidence does not merge those theories or prevent resolution of a legal prerequisite unique to Asterglen's contract claim.

The Court can avoid unnecessary factual findings. It need not adopt Copper Kestrel's July 8 recollection, determine whether Meridian interfered, calculate the counterclaim, or decide a potential setoff. It need decide only that Asterglen invoked termination and breach damages without first providing the written notice and fifteen-calendar-day opportunity required by Section 9.2. That determination applies to Count I even when every contested performance fact is assumed in Asterglen's favor.

Copper Kestrel respectfully requests that District ECF No. 42 be granted and that Count I be dismissed with prejudice. The order should state that Count II against Meridian and Copper Kestrel's counterclaim remain pending. It should further state that the ruling does not resolve the disputed scope of the July 8 permission or establish liability or damages on either remaining claim. Such a disposition gives effect to the parties' agreement while preserving all questions beyond the motion.

Respectfully submitted,

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